

Raj Kumar Patel v. State of U.P. — demand notice / provisional assessment — representation directed

Allahabad High Court · Division Bench · 28 August 2018 · WRIT - C No. 28288 of 2018 · **Writ disposed; representation before EE directed; coercive action stayed 45 days.**

HEADNOTE

Writ to quash a demand notice dated 25.07.2018 issued against the petitioner's deceased father, alleged to have been issued without following the U.P. Electricity Supply Code, 2005. After the department served a provisional assessment order, the petitioner confined the prayer to a fresh objection. Without expressing any opinion on merits, the Court directed the Executive Engineer to decide that representation by a speaking order in accordance with law, preferably within 30 days, and stayed coercive action for 45 days or until that decision, whichever was earlier.

FACTUAL SUMMARY

Raj Kumar Patel sought certiorari to quash a demand notice dated 25 July 2018 issued by the electricity department against his deceased father, and a mandamus restraining coercive recovery. He alleged the notice was issued without following the U.P. Electricity Supply Code, 2005. After an adjournment for instructions, counsel for the Executive Engineer served a provisional assessment order. The petitioner then confined his prayer to leave to file a fresh objection or representation before the assessing authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

demand notice and provisional assessment — representation

HOLDING

Without expressing any opinion on merits, the petitioner was directed to appear before the Executive Engineer on 12 September 2018 and file a fresh representation or objection, enclosing a certified copy of the order and the writ papers. That authority was to consider and decide the representation by a speaking order in accordance with law after hearing, preferably within 30 days of receipt. No coercive action was to be taken for 45 days from the order or until disposal of the representation, whichever was earlier. The writ was disposed of. ¶ 1

FLAG Supply Code 2005 invoked without a numbered clause

PRINCIPLE TAGS

relegate-to-statutory-remedy Writ to quash a demand notice dated 25.07.2018 issued against the petitioner's deceased father, alleged to have been issued without following the U.P. Electricity Supply Code, 2005. After the department served a provisional assessment order, the petitioner confined the prayer to a fresh objection.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 25.07.2018 WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, OR WAS OTHERWISE LIABLE TO BE QUASHED

Court expressly declined to opine on merits after the petitioner confined the prayer to a representation. ¶ 1

